

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO**

Civil Action No. 14-cv-00778-REB-MEH

UNITED STATES WELDING, INC.,

Plaintiff,

vs.

TECSYS, INC.,

Defendant.

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**VERDICT FORM A  
CLAIM FOR FRAUDULENT MISREPRESENTATION OR CONCEALMENT**

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We, the jury, present our answers to questions submitted by the court, to which answers we all have agreed:

1. Do you find that plaintiff, US Welding, has proven by a preponderance of the evidence all of the eight (8) essential elements of its claim of fraudulent misrepresentation or concealment, as set forth in Instruction No. 10?

YES \_\_\_\_\_

NO   X  

**[If you answered "yes" to Question No. 1, above, then please answer Question Nos. 2 and 3. If you answered "no" to Question No. 1, above, do not answer any other Questions on this Verdict Form A; instead, date and sign this Verdict Form A.]**

2. Do you find that defendant, TECYS, has proven by a preponderance of the evidence both of the essential elements of its affirmative defense of waiver by ratification, as set forth in Instruction No. 26?

YES \_\_\_\_\_

NO \_\_\_\_\_

3. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence both of the essential elements of its affirmative defense of statute of limitations, as set forth in Instruction No. 28?

YES \_\_\_\_\_

NO \_\_\_\_\_

**[If you answered "no" to Question Nos. 2 and 3, above, then please answer Question No. 4. If you answered "yes" to Question Nos. 2 or 3, or both, above, do not answer any other Questions on this Verdict Form A; instead, date and sign this Verdict Form A.]**

4. Do you find that the plaintiff, US Welding, has proven by a preponderance of the evidence that it suffered damages, as described in Instruction No. 34, caused by the fraudulent representation or representations or concealment of facts by the defendant, TECSYS?

YES \_\_\_\_\_

NO \_\_\_\_\_

**[If you answered "yes" to Question No. 4, above, then please answer Question Nos. 5 and 6. If you answered "no" to Question No. 4, above, do not answer any other Questions; instead, date and sign this Verdict Form A.]**

5. Please enter the amount of damages to be awarded to the plaintiff, US

Welding, against the defendant, TECSYS, in any of the following categories:

a. lost employee time due to TECSYS software being inaccessible -

\$ \_\_\_\_\_.

b. employee time and expenses for TECSYS software training -

\$ \_\_\_\_\_.

c. employee time and expenses for "dry run" training -

\$ \_\_\_\_\_.

d. cost of equipment purchased solely for TECSYS software implementation -

\$ \_\_\_\_\_.

e. employee time spent working with TECSYS to resolve problems with TECSYS software -

\$ \_\_\_\_\_.

f. employee time spent on issues and problems caused by TECSYS software in connection to month end close -

\$ \_\_\_\_\_.

g. cost of assignment of one full time US Welding employee to act as a point of contact with TECSYS to deal with issues and problems with TECSYS software – 2010 to 2015 -

\$ \_\_\_\_\_.

h. lost profits -

\$ \_\_\_\_\_.

i. payments made by US Welding to TECSYS for software and services.

\$ \_\_\_\_\_.

6. Do you find that defendant, TECSYS, has proven by a preponderance of the evidence both of the essential elements of its affirmative defense of failure to mitigate damages, as set forth in Instruction No. 27?

YES \_\_\_\_\_

NO \_\_\_\_\_

**[If you answered "yes" to Question No. 6, above, then please answer Question No. 7. If you answered "no" to Question No. 6, above, do not answer Question No. 7, and proceed to Question No. 8.]**

7. What amount of damages did the plaintiff, US Welding, suffer because it failed to take reasonable steps to avoid or minimize its damages?

\$ \_\_\_\_\_.

8. Do you find that the plaintiff, US Welding, has proven beyond a reasonable doubt that the defendant, Tecsys, acted in a manner that supports an award of punitive damages, as stated in Instruction No. 36?

YES \_\_\_\_\_

NO \_\_\_\_\_

**[If you answered "yes" to Question No. 8, above, then please answer Question No. 9. If you answered "no" to Question No. 8, above, do not answer any other Questions; instead, date and sign this Verdict Form A.]**

9. Please enter the amount of punitive damages to be awarded to the plaintiff, US Welding, against the defendant, Tecsys.

\$ \_\_\_\_\_.

**[This space left blank intentionally.]**

**YOUR FOREPERSON SHOULD COMPLETE AND DATE THIS VERDICT FORM A,  
AND EACH JUROR SHOULD SIGN THIS VERDICT FORM.**

Dated this 23<sup>rd</sup> day of September, 2016.

Foreperson